

26SMCV00367 26SMCV00367

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C08%2F27%2F2026

Source SHA-256: 6ea25e9b2feb0cdbdf8876fe14929a5b51752c8a9cf86f005b2bdd79ef7e2735

Case Number: 26SMCV00367 Hearing Date: August 27, 2026 Dept: M

CASE NAME: J. Smith Corp., et al., v. SAI Business Solutions, LLC, et al.

CASE NO.: 26SMCV00367

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 8/27/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for

a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

ANALYSIS

Plaintiff Jonathan

Kavian moves for an order compelling Defendant SAI Business Solutions, LLC, a Texas Limited Liability Company, to provide initial responses to: a) Form Interrogatories – General – Set One; b) Form Interrogatories – Employment Law – Set One; and c) Requests for Production of Documents – Set One.

Plaintiff's

request for judicial notice in reply is GRANTED.

Plaintiff

demonstrates that the subject discovery was served upon SAI, via their agent for service of process, on February 20, 2026. (Kavian Decl., ¶ 10, see Exs. C-F.) Plaintiff gave until June 8, 2026, to respond. (Id., ¶ 11.) Plaintiff received no responses from SAI. (Id., ¶ 12.)

SAI opposes

and disputes whether the subject discovery was properly served. SAI argues that the service on its admitted agent for service of process on February 6, 2026, did not confer jurisdiction, and it was not a party to the case when Plaintiff served the subject discovery on Defendant on February 20, 2026. SAI cites the Corporations Code in support of the proposition that it could be served exclusively via the California Secretary of State. The text of that section does not suggest that service via the Secretary of State would be the exclusive method of service of process in this action. Section 17708.07(d) only holds that a foreign LLC transacting intrastate business in California that does not register with the Secretary of State, is "deemed to have appointed the Secretary of State as its agent for service of process." Corp. Code section 17701.16 also does not suggest that, once involuntarily appointed, the Secretary of State would be the only method of service of process. This section expressly states: "In addition to Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure, process may be served upon limited liability companies and foreign limited liability companies as provided in this section."

(Emphasis added.) Thus, the Corp. Code expressly does not preempt or supersede the general provisions CCP section 413.10 et seq.

Otherwise, SAI does not show that the service of process was invalid under CCP section 413.10 et seq. Plaintiff, however, demonstrates that service was properly conducted under Texas law. (CCP § 413.10(b); Tex. Bus. Orgs. Code § 5.201(b).) SAI also does not dispute that it was served, following process, via its designated agent, and has failed to respond to the discovery at issue. Discovery may be properly served 10 days after the service of summons. (CCP §§ 2030.020(b); 2031.020(b).) The subject discovery was served 14 days following service of summons.

Accordingly,
the motions are GRANTED. SAI is ordered
to respond to the subject discovery, without objection, within 20 days.